

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SANTA FE DISCOUNT CRUISE PARKING, INC., D/B/A EZ
CRUISE PARKING; LIGHTHOUSE PARKING INC; AND SYLVIA
ROBLEDO D/B/A 81ST DOLPHIN PARKING, *Complainants*

DOCKET NO. 14-06

v.

THE BOARD OF TRUSTEES OF THE GALVESTON WHARVES;
AND THE GALVESTON PORT FACILITIES CORPORATION,
Respondents.

Served: November 7, 2022

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge.*

**ORDER ON RESPONDENT’S MOTION TO SUBMIT SUPPLEMENTAL EVIDENCE AND
COMPLAINANT’S REQUEST FOR AN EXTENSION OF TIME**

On October 31, 2022, Respondent filed an opposed motion seeking leave to include supplemental records regarding decal fees (“Motion for Leave to Supplement Decal Fees”). On November 1, 2022, Complainant filed a response in objection to Respondent’s opposed motion for leave to include supplemental records regarding decal fees (“Objection to Motion for Leave to Supplement Decal Fees”).

On November 1, 2022, Complainant filed what it labeled as an “Emergency Motion for Enlargement of Time to File Reply to Respondents’ Reply Brief on Remand” (“Motion for Extension of Time”) requesting that the deadline for Complainant to file its remand reconsideration reply brief and responses to supplemental findings of fact be extended until fourteen days after a ruling on the motion for leave to supplement decal fees.

On November 4, 2022, Respondent filed a response to Complainant’s Motion for Extension of Time (“Response to Motion for Extension of Time”) indicating that Respondent agrees with Complainant’s request for an extension of time to file the reply brief but disagrees with some of the statements in the motion for extension of time.

In this proceeding, the Commission issued a remand decision and then issued a remand decision after reconsideration. After the Commission’s initial remand decision, the parties stated that they “do not believe additional discovery is necessary on the issue of reparations. Documents have already been produced that allow the parties to calculate access fees.” May 24, 2021, Joint Status Report.

After the Commission's reconsideration of the remand decision, the parties disagreed about whether supplemental findings of fact were required. August 23, 2022, Joint Status Report. The remand reconsideration scheduling order permitted supplemental findings of fact.

In addition, the parties state that they have opposing views regarding whether proposed supplemental findings of fact and conclusions of law should be included in their remand reconsideration briefs on the two remaining issues. "Respondent believes the parties should file Proposed Supplemental Findings of Fact and Conclusions of Law based on the existing record with regard to the two remaining issues," and contends that "the prior Findings of Fact and Conclusions of Law regarding the two remaining issues were not designed to reflect the facts and findings needing to be specifically addressed on remand." JSR at 2. However, "Complainant disagrees with this position, and asserts that Proposed Findings of Fact and Conclusions of Law have already been filed by the respective parties and no additional 'Supplemental Proposed Supplemental Findings of Fact and Conclusions of Law' are necessary or otherwise warranted." JSR at 2. Complainant states that the August 8, 2022, order "identifies that '[o]nly briefing on the two issues remanded after reconsideration will be permitted' and therefore, 'Complainant believes that only briefing with regard to the two remaining issues on remand are needed to resolve this matter.'" JSR at 2-3.

The issues this proceeding currently seeks to resolve were not the foremost issues in contention when the parties filed their prior findings of fact and conclusions of law. As the Commission noted in its June 2, 2022, Order Granting in Part and Denying in Part Petition for Reconsideration ("Commission Reconsideration Order"):

[W]hile the Board is not entitled to additional discovery, the parties should have an opportunity to brief reparations questions before the ALJ and argue their respective positions based on the record. Reparations calculation issues were not at the forefront of the litigation before the Commission issued the April 2021 Order, so the parties should have an opportunity to address those issues now that they are squarely before the ALJ.

Commission Reconsideration Order at 16-17. Proposed findings of fact and conclusions of law limited solely to the two issues which are now in contention, accompanied by citations to evidence already in the record supporting them, would facilitate an efficient adjudication. The parties are therefore ordered to include proposed findings of fact and conclusions of law in their briefs addressing the two remaining issues.

The parties should submit an appendix including all evidence which is cited in the remand reconsideration briefs, including in the proposed supplemental findings of fact and conclusions of law. This evidence should already be in the record and the parties should maintain the bates numbers used when previously submitted. The parties should include a cover sheet listing the evidence included in the appendix

with the name and date when it was previously submitted. Parties may cite to evidence submitted in the other parties' appendix rather than including duplicative evidence.

Additionally, in the April 16, 2021, Order on Initial Decision on Remand ("Commission Remand Order"), the Commission stated:

The ALJ may also consider whether and how to pro-rate June 2011 and the extent to which decal fees affect the reparations calculation – while taxis and limousines did not pay per-trip or per-space access fees under the tariffs, they did pay decal fees.

Commission Remand Order at 40. The parties should also ensure that their briefs address "the extent to which decal fees affect the reparations calculation." No additional discovery will be permitted.

Remand Reconsideration Scheduling Order at 1-2.

The parties did not previously raise, and the remand reconsideration scheduling order did not address, whether the parties could submit evidence that had been exchanged during discovery in this proceeding but had not been filed with the Commission. Now that the issue has been raised by the motion for leave to supplement decal fees, it can be addressed.

Respondent asserts that a review of the actual numbers from the discovery already exchanged between the parties is needed to properly consider the extent to which the decal fees affect the calculation of reparations. Motion for Leave to Supplement the Record at 2. Respondent further asserts that the documents it seeks leave to enter into the record "do not constitute 'new evidence' as they were proffered by Respondent over 8 years ago in this proceeding. They do not and cannot constitute a surprise to Complainant as she used incomplete portions of these documents referencing the decal fees in her Appendix filed in this proceeding." Motion for Leave to Supplement the Record at 5.

Complainant contends that Respondent blatantly dismissed the FMC's and ALJ's orders expressly limiting briefing to evidence already in the record; Commission Rule 216 does not support Respondent's motion because an initial decision has already been issued in this case; and no good cause exists or was demonstrated to support Respondent's motion. Objection to Motion for Leave to Supplement Decal Fees at 1-6.

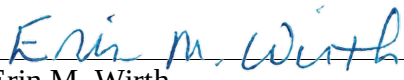
Respondent is granted leave to enter the supplemental documents regarding decal fees into the record. Evidence exchanged during discovery that is pertinent to the issues currently in focus is admissible for the same reasons that the supplemental findings of fact were admitted.

As requested, Complainant will be provided additional time to respond. In addition, if Complainant wants to also submit relevant supplemental documents that have previously been exchanged by the parties in this proceeding, they may do so with their reply brief. If Complainant submits such supplemental documents, Respondent will be given time to address Complainant's supplemental information. The parties should note that only documents

previously exchanged by the parties during discovery in this proceeding will be permitted. Any documents not previously exchanged during discovery in this proceeding will not be accepted.

Accordingly, the parties are hereby **ORDERED** to follow this schedule:

November 22, 2022	Complainant's remand reconsideration reply brief, and responses to Respondent's proposed supplemental findings of fact.
December 6, 2022	Respondent's sur-reply brief, only permitted if Complainant submits supplemental documents previously exchanged during discovery.


Erin M. Wirth
Chief Administrative Law Judge